

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #2	CCRB Case #: 201901129	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 02/06/2019 2:26 PM	Location of Incident: Walton Avenue and Cameron Place	Precinct: 46	18 Mo. SOL 8/6/2020	EO SOL 3/23/2021	
Date/Time CV Reported Wed, 02/06/2019 3:39 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 02/06/2019 3:39 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Konti Markvukaj	07228	956883	046 PCT
2. POF Theresa Lustica	01534	956859	046 PCT
3. POM Thomas Geberth	07948	957649	046 PCT
4. POM Agon Pukaj	03404	962029	046 PCT
5. POM Samuel Mercado	08374	957851	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Konti Markvukaj	Abuse: Police Officer Konti Markvukaj frisked § 87(2)(b)	
B.POM Konti Markvukaj	Abuse: Police Officer Konti Markvukaj searched § 87(2)(b)	
C.POM Konti Markvukaj	Abuse: Police Officer Konti Markvukaj interfered with § 87(2)(b)'s use of a recording device.	
D.POM Konti Markvukaj	Abuse: Police Officer Konti Markvukaj frisked § 87(2)(b)	
E.POM Agon Pukaj	Abuse: Police Officer Agon Pukaj frisked § 87(2)(b)	
F.POM Konti Markvukaj	Abuse: Police Officer Konti Markvukaj searched § 87(2)(b)	
G.POM Agon Pukaj	Abuse: Police Officer Agon Pukaj searched § 87(2)(b)	
H.POM Konti Markvukaj	Abuse: Police Officer Konti Markvukaj searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	
I.POM Samuel Mercado	Abuse: Police Officer Samuel Mercado searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	
J.POM Thomas Geberth	Discourtesy: Police Officer Thomas Geberth spoke discourteously to § 87(2)(b)	
K.POF Theresa Lustica	Discourtesy: Police Officer Theresa Lustica spoke discourteously to § 87(2)(b)	
L.POM Konti Markvukaj	Discourtesy: Police Officer Konti Markvukaj acted discourteously toward § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)		

Case Summary

On February 6, 2019, § 87(2)(b) filed this complaint with the CCRB via telephone on behalf of himself and his father, § 87(2)(b).

At approximately 2:26 p.m. on February 6, 2019, Police Officer Konti Markvukaj and Police Officer Theresa Lustica of the 46th Precinct pulled § 87(2)(b) and § 87(2)(b) over at the intersection of Walton Avenue and Cameron Place in the Bronx. Both civilians began to record the incident using their cell phones. A few minutes later, Police Officer Thomas Geberth, Police Officer Agon Pukaj and Police Officer Samuel Mercado of the 46th Precinct joined them. The officers ordered § 87(2)(b) to exit the vehicle. Police Officer Markvukaj then frisked and searched § 87(2)(b) (**Allegation A: Abuse of Authority – Frisk, § 87(2)(g)**; **Allegation B: Abuse of Authority – Search, § 87(2)(g)**). The officers then ordered § 87(2)(b) to exit the vehicle. Police Officer Markvukaj allegedly took a cell phone from § 87(2)(b)'s hand and turned off its camera (**Allegation C: Abuse of Authority – Interference with a recording device, § 87(2)(g)**). He and Police Officer Pukaj then frisked and allegedly searched § 87(2)(b) (**Allegations D and E: Abuse of Authority – Frisk, § 87(2)(g)**; **Allegations F and G: Abuse of Authority – Search, § 87(2)(g)**). Police Officer Markvukaj and Police Officer Mercado then searched the civilians' vehicle (**Allegations H and I: Abuse of Authority – Vehicle search, § 87(2)(g)**). § 87(2)(b) and § 87(2)(b) got back into their vehicle and started arguing with the officers. During this conversation, Police Officer Geberth told § 87(2)(b) "You're talking some crazy shit, man." Police Officer Lustica stated, "I'm fucking being quiet and I still got it" (**Allegations J and K: Discourtesy – Word, § 87(2)(g)**). § 87(2)(b) was given a summons for § 87(2)(b) (Board Review #01: Summons). Police Officer Markvukaj allegedly threw the summons at § 87(2)(b)'s face (**Allegation L: Discourtesy – Action, § 87(2)(g)**).

§ 87(4-b) § 87(2)(g)

§ 87(2)(b) provided two clips of video footage that he recorded on his cell phone. It is attached in IAs #47-48 (Board Review #02-03: Cell Phone Footage) and summarized in IA #69 (Board Review #04: Cell Phone Video Summary). BWC footage was obtained from Police Officer Markvukaj, Police Officer Lustica, Police Officer Geberth and Police Officer Pukaj. It is attached in IAs #58-61 (Board Review #05-08: BWC Footage) and summarized in IA #70 (Board Review #09: BWC Summary). Subclips from these videos have been attached in IAs #106-111 (Board Review #10-15: Video Subclips).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Konti Markvukaj frisked § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Konti Markvukaj searched § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Konti Markvukaj frisked § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Agon Pukaj frisked § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Konti Markvukaj searched § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Agon Pukaj searched § 87(2)(b)

Allegation (H) Abuse of Authority: Police Officer Konti Markvukaj searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (I) Abuse of Authority: Police Officer Samuel Mercado searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) provided a telephone statement on February 25, 2019 (Board Review #16: Telephone Statement). He and § 87(2)(b) were interviewed at the CCRB on February 27, 2019. Police Officer Markvukaj and Police Officer Lustica were interviewed at the CCRB on April 15, 2019. Police Officer Geberth was interviewed at the CCRB on May 1, 2019. Police Officer Pukaj and Police Officer Mercado were interviewed at the CCRB on May 13, 2019.

It is undisputed that § 87(2)(b) and § 87(2)(b) took out their cell phones and started to record the officers as soon as they were pulled over. They did not make any other movements while in their vehicle. § 87(2)(b) rolled the driver's window down approximately six inches, but refused to roll it down any further when asked by Police Officer Markvukaj. § 87(2)(b) was angry throughout the incident and protested his stop when Police Officer Markvukaj approached his vehicle. The civilians were asked to exit their vehicle one at a time. Police Officer Markvukaj frisked both civilians as soon as they exited. After the civilians exited their vehicle, Police Officer Markvukaj and Police Officer Mercado searched the vehicle's interior cabin. The officers recovered a clear plastic bag containing several orange pills from the interior cabin. When the civilians were asked about the pills, they told the officers that they were Vitamin C supplements. The two officers then opened the vehicle's trunk and searched inside it.

§ 87(2)(g)

Neither civilian made any mention of there being marijuana inside of their vehicle, or of any odors emanating from inside of their vehicle. § 87(2)(b) stated that he was carrying a packet of tissues in his front-left pants pockets. He did not have anything else on his person. Once he exited his vehicle, Police Officer Markvukaj frisked him by patting down both of his legs. He then searched § 87(2)(b) by reaching into his front and rear pants pockets.

§ 87(2)(b) did not see if officers patted § 87(2)(b)'s body or reached into § 87(2)(b)'s pockets. The officers then asked § 87(2)(b) to exit the vehicle. § 87(2)(b) had his identification in his front-left pants pockets. He did not have anything else on his person. Police Officer Markvukaj frisked § 87(2)(b) by patting his legs, waistband and pants pockets. He then reached inside of § 87(2)(b)'s pockets.

Both civilians stated that they did not observe the extent of the officers' search in the vehicle's passenger compartment. They both stated that the bag of orange pills was inside the vehicle's center console at the time of the vehicle search. § 87(2)(b) denied that there were any other items in the vehicle. § 87(2)(b) stated that he left a backpack underneath the front passenger's seat. It contained clothing, tools and a speaker. After the vehicle search, he found that the contents of the backpack were strewn about the interior.

§ 87(2)(g)

§ 87(2)(b) The officers stated that they detected an odor of marijuana emanating from the civilian's vehicle when they approached. They did not make any other observations about the civilians or their vehicle that indicated that marijuana was present. The officers asked § 87(2)(b) and § 87(2)(b) to exit the vehicle. Police Officer Markvukaj frisked both civilians as they exited the vehicle. He did so in order to investigate the odor and locate any marijuana in the vehicle or on their persons. He also stated that he frisked § 87(2)(b) because of his uncooperative and aggressive demeanor when he was first stopped. None of the officers suspected that § 87(2)(b) or § 87(2)(b) were armed. Police Officer Markvukaj denied that he reached into either civilian's pockets. None of the other officers saw Police Officer Markvukaj reaching into the civilians' pockets.

Police Officer Markvukaj and Police Officer Mercado searched the passenger compartment and trunk of the vehicle in order to investigate the odor of marijuana. Police Officer Markvukaj searched the areas around and underneath the front passenger's seat and the right side of the back seat. Police Officer Mercado searched around the driver's seat and the left side of the back seat. While Police Officer Mercado did not recall seeing any bags in the vehicle, Police Officer Markvukaj stated that there was a black backpack in the front passenger's seat. He searched the inside of the backpack. Police Officer Markvukaj discovered the bag containing the pills during this search. Police Officer Markvukaj stated that he retrieved them from the center console. Police Officer Mercado stated that they were found in the back seat. Both officers stated that after the civilians told them that the pills were a Vitamin C supplement, they were returned to the vehicle. They did not conduct any further investigation to determine the nature of the pills.

Police Officer Geberth did not recall this incident. He did not recall if § 87(2)(b) or § 87(2)(b) were frisked or searched or if their vehicle was searched.

A subclip from § 87(2)(b)'s cell phone footage is attached in IA #106 (Board Review #10: BWC Subclip). It shows § 87(2)(b) being asked to exit the driver's seat of his vehicle. § 87(2)(b) hands the phone to § 87(2)(b) in the front passenger's seat. § 87(2)(b) records § 87(2)(b) as he exits the vehicle. Once § 87(2)(b) is out of the vehicle, Police Officer Markvukaj frisks him by patting his legs and front pants pockets. Police Officer Markvukaj then reaches into § 87(2)(b)'s front-left pants pocket. When Police Officer Markvukaj was shown this footage, he stated that he did not recall why he reached in § 87(2)(b)'s pocket.

A subclip from Police Officer Markvukaj's BWC footage is attached in IA #108 (Board Review #14: BWC Subclip). It shows Police Officer Markvukaj asking § 87(2)(b) to exit the front passenger's seat. Once § 87(2)(b) exits the vehicle, Police Officer Markvukaj reaches

down towards § 87(2)(b)'s lower body. His hands are below the video's frame, so it cannot be seen what, if any, contact he makes with § 87(2)(b). Police Officer Pukaj stands next to Police Officer Markvukaj and § 87(2)(b) but the video does not show what actions he took at the time. Neither § 87(2)(b)'s cell phone footage nor the other officers' BWC footage shows whether Police Officer Markvukaj, Police Officer Pukaj or any other officer reaches into § 87(2)(b)'s pockets.

§ 87(2)(g)

The odor of marijuana emanating from a vehicle during a valid traffic stop provides officers with probable cause to search the vehicle's occupants as well as the vehicle itself. People v. Chestnut, 36 N.Y.2d 971 (1975) (Board Review #17: Legal Reference).

§ 87(2)(g)

§ 87(2)(g)

Allegation (C) Abuse of Authority: Police Officer Konti Markvukaj interfered with § 87(2)(b)'s use of a recording device.

It is undisputed that § 87(2)(b) started to record the incident with his cell phone at the start of the vehicle stop. When the officers told § 87(2)(b) to exit his vehicle, § 87(2)(b) handed his phone over to § 87(2)(b) who continued the recording. The officers later asked § 87(2)(b) to exit the vehicle as well. § 87(2)(b) did not initially exit the vehicle. He continued holding the phone when he did eventually exit the vehicle. § 87(2)(b) eventually handed the phone back to § 87(2)(b) who used it to record the remainder of the incident.

§ 87(2)(b) stated that when the officers asked § 87(2)(b) to exit the vehicle, Police Officer Pukaj reached into the vehicle and pressed a button on the phone that ended the recording. § 87(2)(b) later resumed the recording when § 87(2)(b) handed the phone back to him. No further efforts were made to interfere with this recording.

§ 87(2)(b) stated that Police Officer Pukaj reached into the vehicle, towards § 87(2)(b)'s phone. § 87(2)(b) told Police Officer Pukaj that he was not going to release the phone. Police Officer Pukaj told § 87(2)(b) that he could keep the phone, but that he would have to stop the recording. § 87(2)(b) replied that he was not going to stop recording. Police Officer Pukaj did not ultimately take the phone or end the recording.

Police Officer Markvukaj, Police Officer Lustica, Police Officer Pukaj and Police Officer Mercado all denied that any officer took the phone from § 87(2)(b). § 87(2)(b) stopped the recording on the phone, or prevented § 87(2)(b) from recording the incident. These officers recalled that § 87(2)(b) and § 87(2)(b) were recording through the entirety of the incident. Police Officer Geberth did not recall this incident.

A subclip from the footage recorded on § 87(2)(b)'s phone is attached in IA #107 (Board Review #11: Video Subclip). At the time of this subclip, § 87(2)(b) is holding the phone. Police Officer Pukaj tells § 87(2)(b) "You can record all you want. Step outside." Police Officer Markvukaj then opens the front passenger's door and reaches towards the phone. The video then ends. When this footage was shown to Police Officer Markvukaj, he denied that he turned the phone's recording off.

A subclip from Police Officer Markvukaj's BWC footage is attached in IA #108 (Board Review #14: BWC Subclip). It shows Police Officer Markvukaj open the front passenger door. He reaches towards a phone that § 87(2)(b) is holding in his right hand. He places his hand on the back of the phone. § 87(2)(b) immediately jerks the phone away from Police Officer Markvukaj's hand. Police Officer Markvukaj tells § 87(2)(b) "Put the phone down. Step out." § 87(2)(b) steps out of the vehicle, but continues to hold the phone. Neither Police Officer Markvukaj nor the other officers reach towards the phone again.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)
§ 87(2)(g) Video footage from both the phone and the officers' BWCs showed that none of the officers told § 87(2)(b) that he was not allowed to record. The footage from the phone itself shows that Police Officer Pukaj specifically told § 87(2)(b) that he was entitled to record the incident.

§ 87(2)(g)
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§ 87(2)(g)

Allegation (J) Abuse of Authority: Police Officer Thomas Geberth spoke discourteously to

§ 87(2)(b)

Allegation (K) Discourtesy: Police Officer Theresa Lustica spoke discourteously to

§ 87(2)(b)

It is undisputed that when Police Officer Markvukaj was writing § 87(2)(b)'s summons, § 87(2)(b) and § 87(2)(b) waited in their vehicle. The other officers, including Police Officer Geberth and Police Officer Lustica, waited next to the civilian's vehicle. § 87(2)(b) and § 87(2)(b) shouted insults at the officers next to their vehicle as they waited.

Neither § 87(2)(b) nor § 87(2)(b) mentioned any of the officers using profanity during the incident. All of the officers except Police Officer Geberth denied that they or the other officers used profanity towards the civilians. Police Officer Geberth did not recall the incident and did not recall if he or any other officers used profanity.

A subclip from Police Officer Geberth's BWC footage is attached in IA #109 (Board Review #12: BWC Subclips). It shows him telling § 87(2)(b) "You're talking some crazy shit, man." When shown this footage, Police Officer Geberth stated that he did not recall making this statement. He did not recall why he used profanity towards § 87(2)(b).

A subclip from Police Officer Lustica's BWC footage is attached in IA #110 (Board Review #13: BWC Subclips). It shows her standing immediately next to § 87(2)(b) by the front passenger's window. She tells one of the other officers, "I'm fucking being quiet and I still got it." When shown this footage, Police Officer Lustica stated that she did not recall making that statement. When asked why she used profanity, Police Officer Lustica stated that her comment was directed towards her fellow officers, not towards the civilians.

An officer may use profanity towards a civilian while attempting to gain control of a "dynamic situation." An officer may not use profanity when it is intended solely to insult or belittle a civilian. PD v. Pichardo, DAO-DCT Case #2015-15012 (Board Review #18: Legal Reference).

§ 87(2)(g)

Allegation (L) Discourtesy: Police Officer Konti Markvukaj acted discourteously toward

§ 87(2)(b)

It is undisputed that Police Officer Markvukaj issued § 87(2)(b) a summons for § 87(2)(b). Police Officer Markvukaj delivered the subpoena to the civilians himself.

§ 87(2)(b) stated that Police Officer Markvukaj delivered the summons by throwing it directly at his face through the open driver's window. § 87(2)(b) stated that Police Officer Markvukaj dropped the summons into the backseat through the rear-left passenger window.

Police Officer Markvukaj, Police Officer Lustica, Police Officer Pukaj and Police Officer Mercado all stated that Police Officer Markvukaj handed the summons directly to § 87(2)(b) through the driver's window. They denied that Police Officer Markvukaj threw the summons at § 87(2)(b). Police Officer Geberth did not recall this incident.

A subclip taken from Police Officer Markvukaj's BWC, attached in IA #111, shows him delivering the summons to § 87(2)(b). He holds the summons out towards § 87(2)(b) and then drops it into the interior of the vehicle. He does not throw the summons (Board Review #15: BWC Subclip).

§ 87(2)(g)

§ 87(4-b) § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to two previous CCRB complaints and has been named as a victim in four allegations (Board Review #20: Civilian CCRB Histories).
 - § 87(2)(b)
- § 87(2)(b) has been a party to one previous CCRB complaint and has been named as a victim in one allegation (Board Review #20: Civilian CCRB Histories).
 - § 87(2)(b)

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date